

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ANEURY PERALTA,

Index No.

Plaintiff

-against-

CITY OF NEW YORK, DETECTIVE JAMES CLEARY,
Shield #696, DETECTIVE DOMINGO AYALA,
Shield #2749, JOHN DOE #s1-3 (names unknown, being
police officers who were present on June 7, 2015 at various
times during the encounter between plaintiff and the police),

Defendants

-----X

SUMMONS**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Venue designated is New York County. Basis of designated venue is place of occurrence.

Dated: New York, New York
June 5, 2018**LAW OFFICES OF K.C. OKOLI, P.C.**

Attorneys for Plaintiff

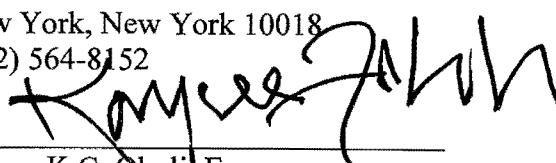
ANEURY PERALTA

330 Seventh Avenue

15th Floor

New York, New York 10018

(212) 564-8152

By: 

K.C. Okoli, Esq.

FOR SERVICE ON

CITY OF NEW YORK
c/o ZACHARY W. CARTER
Corporation Counsel, City of New York
NYC Law Department
100 Church Street
New York, New York 10007

DETECTIVE JAMES CLEARY, Shield #696
Gang Unit
NYPD
Manhattan, New York

DETECTIVE DOMINGO AYALA, Shield #2749,
Gang Unit
NYPD
Manhattan, New York

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COMPLAINT

Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for violation of the plaintiff's civil rights and Fourth Amendment rights under the United States Constitution constitutional, his rights under the Constitution of the State of New York, and pursuant to the common law of the State of New York.

2. The jurisdiction of the court is invoked to secure the protection and redress the deprivation of rights guaranteed to persons by the Fourth, and Fourteenth Amendments to the Constitution of the United States.

3. Venue is proper in the County of New York based upon the fact that the

events or omissions which gave rise to the claims asserted herein occurred within the County of New York.

PARTIES

4. At all times relevant to this action, Plaintiff, Aneury Peralta ("PERALTA"), was a resident of the County of New York, City and State of New York.

5. PERALTA is a 27-year-old male Black Hispanic.

6. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "CITY") was a municipal corporation established under and by virtue of the laws of the State of New York.

7. At all times hereinafter mentioned, CITY maintained, operated, controlled and supervised a police department, the New York City Police Department (hereinafter, "NYPD").

8. Upon information and belief, at all times hereinafter mentioned, DETECTIVE JAMES CLEARY ("CLEARY"), was a police detective employed by the NYPD.

9. Upon information and belief, at all times hereinafter mentioned, DETECTIVE DOMINGO AYALA ("AYALA"), police detective employed by the NYPD.

10. At all times hereinafter mentioned, the NYPD employed law enforcement officers, including the individual defendants herein who performed law enforcement duties for and on behalf of the CITY within the CITY's territorial limits.

11. At all times hereinafter mentioned, CLEARY and AYALA were acting in the course and within the scope of their employment as agents or employees of the CITY.

12. At all times hereinafter mentioned, the CLEARY and AYALA were acting under color of the statutes, ordinances, regulations, customs and usages of the NYPD, the CITY and State of New York, and under the authority of their respective offices.

FACTUAL BACKGROUND

13. Sometime after 1:00 PM, PERALTA and his sister, Perla, left Target in the East River Plaza (117th Street & Pleasant Avenue) and decided to head home after driving around and not finding a parking space.

14. As PERALTA made a right turn into 123rd Street from 2nd Avenue, he heard sirens which sounded like police sirens but did not see a marked police car. He noticed a mini-van behind him which he thought was also looking for a parking space like him.

15. PERALTA soon realized that it was the vehicle from which the sirens were coming when he heard instructions to pull over.

16. PERALTA pulled over, double-parked, turned off the car and put the key on top of the ignition.

17. Three men in civilian clothes walked over to PERALTA's car, did not identify themselves, one man stood in front of his window on the driver's side and the two other men on the passenger's side.

18. When they approached the car, they were just looking at each other because they had realized there was someone else besides PERALTA in the car. Perla is so petite, she could barely be seen in the car from a distance.

19. The man that came to PERALTA's window asked PERALTA to put all the windows down and even though there were no tints in the car and he could clearly see that there was two people in the car.

20. This man asked PERALTA if he had any weapons inside the vehicle or anything that they should be informed about and PERALTA answered no. He then asked if PERALTA had an outstanding warrant to which PERALTA answered no.

21. PERALTA then asked the man why they had stopped him, and he claimed that

PERALTA had made an improper right turn.

22. PERALTA asked the man how he could have made an improper right turn if the light was green and the man simply repeated himself that PERALTA had made an improper right turn.

23. When PERALTA explained to him why it was that he could not have made an improper right turn, the man raised his voice saying, "Oh we have a smart ass here" while looking at the other men standing across from him by the passenger window.

24. The man then looked at PERALTA and said, "Can I see your license?" PERALTA handed the man his license and he took a very long stare at it and leaned back straightening himself and looking at the other two officers.

25. PERALTA broke the long silence by asking "Am I being detained?" The man responded, no. And PERALTA asked for his license back, and the reply was "No, but you cannot go anywhere."

26. PERALTA then became confused and asked if he was waiting for a summons.

27. Apparently, this questioning infuriated the man who referred to PERALTA as a "smart ass" for asking many questions.

28. The man then handed PERALTA his license and said, "You're good to go." PERALTA then grabbed his keys from the top of the hood. Perla started putting her window up and one of the officers in front of her asked "what are you doing?" very aggressively and in a high tone.

29. The officer that approached PERALTA first, on the driver's side told the other officer "they're good to go, just let him go." And then the officer in front of Perla sister said, "It's all about respect."

30. PERALTA then asked which one was it: could they go or not since the

officers were giving contradictory instructions.

31. PERALTA then asked who was in charge since he wanted to know whose instruction they were to follow. The officer in front of Perla's window turned red and yelled at PERALTA, "Lower your freaking voice".

32. The officer that first interrogated PERALTA said let him go let him go so they said PERALTA could go.

33. PERALTA then took off and was headed to 3rd Avenue but before reaching 3rd Avenue pulled into a parking spot.

34. As PERALTA and Perla got out of the car and opened the trunk to grab their bags, PERALTA felt someone grab his arms but did not know who at the time. As PERALTA turned around, he saw the same police officers (CLEARY, AYALA and JOHN DOE #1) who told him he was being arrested.

35. PERALTA did not wait before he put his hands behind his back as he asked again why he was being detained.

36. At this point, none of the officers was responding to PERALTA's question.

37. They then all grabbed PERALTA by the neckline of his sweater and shoved him to the ground.

38. All three men then began hitting PERALTA with wooden sticks on his leg, knee and all over; one officer came out of nowhere and punched PERALTA.

39. At this point PERALTA began to panic and feared for his life because of his previous encounters with the police and the recent news on television of clashes between police clashes and civilians which did not end well for the civilians.

40. Perla who had been recording the incident on her cell phone began panicking and crying' Perla stopped recording and ran to the officers and PERALTA and got in

between them, protesting the brutalization of PERALTA which was uncalled for.

41. PERALTA was handcuffed and put against the car. At this point, PERALTA noticed the presence of another officer (JOHN DOE #2) who was bigger than him whom he had not previously noticed.

42. PERALTA was taken into PSA 5 precinct where he was photographed, fingerprinted and otherwise processed and placed in a cell. No family member knew where PERALTA was at this time as PERALTA's request for a phone call was denied.

43. After some time, PERALTA was taken to Bellevue Hospital because he was in so much pain from his left knee which was already swollen from the beating he had received. PERALTA was seen by medical staff at Bellevue and released back into the custody of the police.

44. PERALTA was then taken Downtown near City Hall where he was kept overnight and arraigned before a judge the next morning.

45. PERALTA was then allowed to make a phone call at which time PERALTA called his sister to let her know where he was.

46. It was at his arraignment that PERALTA first learned what the charges against him were. PERALTA was charged with Assault in the Second Degree, Obstructing Governmental Administration in the Second Degree and Resisting Arrest.

47. PERALTA was granted bail at \$1,500.

AS AND FOR A FIRST CAUSE OF ACTION: 4TH AMENDMENT SEIZURE

48. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "47" as if fully set forth herein.

49. Without any reasonable or probable cause, CLEARY stopped PERALTA's

vehicle.

50. CLEARY purported to have stopped PERALTA for unspecified multiple violations of the Vehicle and Traffic Law.

51. The purported violation which was false was only a pretext for Defendants to harass PERALTA who had a few pending lawsuits against members of the NYPD.

52. CLEARY, AYALA and JOHN DOE #1 forcefully handcuffed PERALTA and took him into their custody.

53. PERALTA remained in the custody of the Defendants until his arraignment the next morning, being July 8, 2015.

54. By reason of the foregoing, Plaintiff has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION: USE OF EXCESSIVE FORCE

55. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "54" as if fully set forth herein.

56. In taking PERALTA into their custody, CLEARY, AYALA and JOHN DOE #1 used more force than was necessary by striking PERALTA all over his body, including his knees, forcefully shoving PERALTA to the ground and tightly placing the handcuffs on him.

57. When Defendants acted towards PERALTA in the manner aforementioned, Defendants violated PERALTA's right under the Fourth Amendment to the United States Constitution.

58. By reason of the foregoing, Plaintiff has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION:
4TH AMENDMENT MALICIOUS PROSECUTION

59. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "58" as if fully set forth herein.

60. CLEARY and AYALA initiated the criminal prosecution of PERALTA by subscribing to and/or executing the accusatory instrument on which PERALTA was arraigned.

61. CLEARY and AYALA did so with malice and without any probable cause to believe that PERALTA was guilty of any of the crimes which they charged PERALTA with.

62. CLEARY and AYALA falsely alleged that PERALTA assaulted AYALA during the cause of PERALTA's arrest.

63. Defendants continued to prosecute PERALTA until March 1, 2017 when all charges against PERALTA were dismissed.

64. The aforesaid dismissal constitutes termination of the prosecution in favour of PERALTA.

65. By reason of the foregoing Plaintiff has suffered loss and damage.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR COMMON LAW FALSE ARREST

66. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "65" as if fully set forth herein.

67. PERALTA was fully conscious of being arrested and taken into custody by CLEARY and AYALA.

68. Defendants fully intended to confine PERALTA when they took PERALTA into their custody on June 7, 2017.

69. PERALTA did not consent to the aforesaid arrest and confinement.

70. By reason of the foregoing, Plaintiff has suffered loss and damage.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR COMMON LAW MALICIOUS PROSECUTION

71. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "70" as if fully set forth herein.

72. The criminal prosecution of PERALTA between June 7, 2015 and March 1, 2017 was without any reasonable belief by the Defendants in PERALTA's guilt of the charges.

73. Said prosecution continued with malice and terminated in PERALTA's Favour when all charges were dismissed.

74. By reason of the foregoing, Plaintiff has suffered loss and damage.

75. Plaintiff demands a jury trial for all matters triable by jury.

WHEREFORE, Plaintiff requests that the Court grant the following reliefs:

a) On the First Cause of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);

b) On the Second Cause of Action, compensatory damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00);

c) On the Third Cause of Action, compensatory damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00);

d) On the Fourth Cause of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);

e) On the Fifth Cause of Action, compensatory damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00);

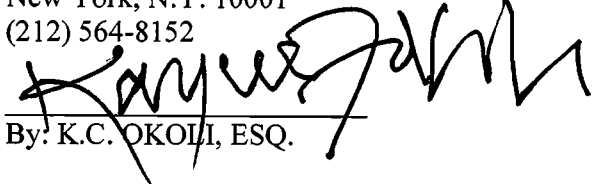
f) Punitive damages against CLEARY and in the sum of ONE HUNDRED THOUSAND DOLLARS (\$100,000.00) each;

g) Attorney's fees;

h) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

Dated: New York, New York
June 5, 2018

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
ANEURY PERALTA
330 Seventh Avenue
15th Floor
New York, N.Y. 10001
(212) 564-8152


By: K.C. OKOLI, ESQ.

FOR SERVICE ON

ZACHARY W. CARTER
Corporation Counsel, City of New York
Attorney for the City of New York
NYC Law Department
100 Church Street
New York, New York 10007

DETECTIVE JAMES CLEARY, Shield #696
Gang Unit
NYPD
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SUMMONS AND COMPLAINT

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330 Seventh Avenue
15th Floor
New York, N.Y. 10001
(212) 564-8152 (voice)
(212) 268-3443 (fax)